

The Land Ports Authority of India (Contracts) Regulations, 2015

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[The Land Ports Authority of India \(Contracts\) Regulations, 2015](#)

[Published vide Notification No. G.S.R. 850\(E\), dated 6th November, 2015](#)

[Ministry of Home Affairs](#)

[Land Ports Authority Of India](#)

[G.S.R. 850\(E\). - In exercise of the powers conferred by sub-section \(1\) read with clause \(c\) of sub-section \(2\) of Section 35 and sub-section \(2\) of Section 18 of the Land Ports Authority of India Act, 2010 \(31 of 2010](#)

[\), the Land Ports Authority of India with the previous approval of the Central Government, hereby makes the following regulations, namely:-](#)

[1.](#)

[Short title and commencement.](#)

(1)
These regulations may be called the Land Ports Authority of India (Contracts) Regulations, 2015.

(2)
They shall come into force on the date of their publication in the official Gazette.

2.
Definitions.

(1)
In these regulations, unless the context otherwise requires,-

(a)
"Act" means the Land Ports Authority of India Act, 2010 (31 of 2010

);
(b)
"Authority" means the Land Ports Authority of India constituted under section 3 of the Act;

(c)
"Chairperson" shall have the meaning assigned to it in clause (b) of section 2 of the Act;

(d)
"Member" means a member of the Authority.

(2)
Words and expressions used herein and not defined, but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3.
Contracts or class of contracts, which are required to be sealed with the common seal of the Authority.
- The following contracts or class of contracts shall be sealed with the common seal of the Authority, namely:-

(a)
Contracts to be made with the previous approval of the Central Government under sub-section (1) of section 18 of the Act;

(b)
Contracts to be made with the approval of the Authority where the period of the contract is over five years;

(c)
Contracts regarding loans and advances sanctioned to the Authority by the Central Government.

4.
Manner in which contract is to be sealed with the common seal of the Authority.

(1)
The Authority shall provide for the safe custody of the seal.

(2)
All contracts shall be finalised by the execution of a Deed of Agreement, Deed of Licence, Indenture or a like instrument, as the case may be, duly signed by the Authority and the party concerned and the Deed of Agreement, Deed of Licence, Indenture or like instrument, as the case may be, shall be executed, where necessary, on a non-judicial paper of appropriate stamp value.

(3)
The seal of the Authority shall not be affixed to any instrument referred to in sub-regulation (2) except by a resolution of the Authority or of a Committee constituted by the Authority and authorised by it in that behalf.

(4)
The seal of the Authority shall be affixed to the instrument referred to in sub-regulation (2) in the presence of at least one Member and/or such officer as the Authority may appoint for the purpose and the Member or officer so present shall sign every instrument to which the seal of the Authority is so affixed in their presence.

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